



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TPR Darren Wiggins #746, TPR Levi Champion #982 and TPR Tim Pattison #683

Work Assignment: Troop/Division - A; Post/Unit – 3 - Cartersville

INCIDENT REPORT # DPS00166192

Related Crash Reports: _____ ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 6/10/2024

Time: 1455 Hours

Location: Post 3 - Cartersville

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, CPL Caleb Terry #117, TPR Darren Wiggins #746, TPR Tim Pattison #683 and TPR Levi Champion #982

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 5/10/2024

Time: 2034 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 5/10/2024, at approximately 2034 hours, Troopers Wiggins, Pattison and Champion were traveling north on GA 3 in Bartow County, when they observed a black go-cart enter GA 3 North from Cassville Road. TPR Wiggins activated his emergency lights and siren in an attempt to stop the go-cart. However, the driver of the go-cart refused to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A

If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TPR Pattison contacted the Troop A Communications Center by radio and informed them that TPR Wiggins was in a pursuit. TPR Pattison provided their location, direction of travel and a description of the vehicle. Dispatcher Hunter received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Once the pursuit initiated, Dispatcher Hunter cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers.

Dispatcher Raymond contacted the Bartow County 911 Center by telephone to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on GA 3 northbound at Cassville Road and continued north until the violator exited the roadway, traveled through a field and onto Shropshire Lane. Once the violator ran onto Shropshire Lane (deadend), the Troopers lost visual and discontinued the pursuit. The pursuit traveled approximately 1.52 miles and lasted 4 minutes and 12 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☒ N/A If Yes, explain:

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☐ Yes ☒ No If no, explain: TPR Pattison called the pursuit which allowed Troopers Wiggins and Champion to concentrate on their driving skills.

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain: TPR Pattison failed to utilize his siren throughout the pursuit.

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☐ Yes ☒ No If no, explain: TPR Pattison failed to utilize his siren throughout the pursuit.

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A

Explain: The Troopers attempted a Box-In Maneuver with TRP Wiggins taking the front position, TPR Champion pulled up along the left side of the vehicle and TPR Pattison took the rear position. However, the violator recklessly steered left between TPR Wiggins and TPR Champion's patrol cars to avoid the Box-In.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: TPR Wiggins and TPR Champion utilized all their emergency equipment throughout the pursuit and operated their vehicles in a responsible manner. TPR Pattison only utilized his blue lights during the pursuit. TPR Pattison called the pursuit which allowed the others to concentrate on their vehicle operations.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with clear skies and a dry road surface. The traffic on GA 3 at the time of the pursuit would be described as light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: Troopers Wiggins, Champion and Pattison properly discontinued the pursuit once visual contact was lost. This decision was reasonable, within the guidelines of DPS policy and prevented further risk of harm to the public.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: Once Troopers Wiggins, Champion and Pattison lost visual contact with the suspect, they discontinued the pursuit. Their actions were in compliance with DPS policy.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A

If Yes, explain: The violator operated his vehicle in a reckless manner and drove north in the southbound lanes.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A

If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A

If Yes, explain: After losing visual contact with the motorcycle, Troopers Wiggins, Champion and Pattison discontinued the pursuit per DPS Policy.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A

If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A

If Yes, explain:

13. Address any damage to vehicles.

☒ N/A

If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A

If Yes, explain: This was TPR Wiggins second pursuit and TPR Pattison's first pursuit. TPR Champion has been involved in four pursuits as a State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A

If Yes, explain: Troopers Wiggins, Champion and Pattison have received E.V.O.C. and Advanced E.V.O.C. Training.

ISSUES ADDRESSED

1. Positives.

☒ N/A

If Yes, explain:

2. Areas for improvement.

☐ N/A

If Yes, explain: TPR Pattison should make use of all his emergency equipment when operating his vehicle in an emergency mode. In this case, once it was evident that the violator was refusing to stop, those involved should have notified the Communications Center sooner that they were in a pursuit.

3. Other considerations.

☒ N/A

If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☐

N/A

If Yes, explain: CPL Terry stated that the Troopers exercised good judgement/decision making skills to implement the Box-In Maneuver.

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

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N/A

If Yes, explain: TPR Pattison was issued a Letter of Instruction for operating his patrol vehicle in an emergency mode without having his siren activated during the pursuit.

Lt. T. L. Nichols #36
Reviewing Officer

Lt. T. L. Nichols #36

6/14/2024

Date